

Therefore, defendant made a sufficient showing of a valid and enforceable agreement to arbitrate between the parties and no defense to enforcement applies. Accordingly, defendant's motion to compel arbitration is granted. The action shall be stayed, pending completion of arbitration.

The court vacates pending dates, including the trial scheduled for September 2, 2026, and schedules this matter for an Order to Show Cause hearing regarding the status of arbitration on **March 9, 2027, at 9:00 a.m. in Department 32.**

3. S-CV-0044551 Duncan, Royce D al v. Mason, Thomas A

This tentative ruling is issued by the **Honorable Todd D. Irby.**

Final Accounting

Appearance of the parties is required on **July 14, 2026 at 8:30 a.m. in Department 33.**

4. S-CV-0049842 Garcia, Fernando v. Hospitality Team Members

Defendant's Motion to Compel Further Responses to Special Interrogatories, Set One

Defendant moves to compel further responses to special interrogatories, set one, nos. 11, 16, and 22.

Special interrogatory no. 11 requests the dates of each specific instance in which plaintiff informed defendant that plaintiff did not receive a compliant meal break. Special interrogatory no. 16 requests the dates of each specific instance in which plaintiff informed defendant that plaintiff did not receive a compliant rest break. Special interrogatory no. 22 requests the dates of each specific instance in which plaintiff informed defendant that plaintiff did not receive a compliant wage statement.

In response to each of the subject interrogatories, plaintiff references Code of Civil Procedure section 2030.230, and refers to the complaint, the PAGA letter to the LWDA, defendant's business records, payroll and time records, wage statements, and defendant's policies and procedures.

Code of Civil Procedure section 2030.230 applies where responding to the interrogatory would necessitate making a compilation or summary of information, no such compilation presently exists, and the burden or expense of preparing or making the compilation would be substantially the same for the interrogating party as for the responding party. A response which references this statute must describe the records with sufficient particularity. (*Fuss v. Superior Court* (1969) 273 Cal.App.2d 807, 815-817.) Plaintiff's reference to Code of Civil Procedure section 2030.230 is not supported, and the response does not sufficiently describe the records.

Plaintiff's responses to the subject interrogatories are otherwise non-responsive.